

CHAPTER 48

An Act to amend the provisions of the Merchandise Marks Acts, 1887 to 1938, relating to false trade descriptions, and to imported goods bearing the trade mark of a manufacturer, dealer or trader in the United Kingdom, and to amend the Merchandise Marks Act, 1887, in relation to offences. [31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In section three of the Merchandise Marks Act, 1887 (which, among other things, defines “trade description” as any description, statement, or other indication, direct or indirect, as to any of the matters mentioned in paragraphs (a) to (e) of the definition), that definition shall be amended by inserting after paragraph (a)—

Extension of definitions of “trade description” and “false trade description”.

“(aa) as to the standard of quality of any goods, according to a classification commonly used or recognised in the trade, or

(ab) as to the fitness for purpose, strength, performance or behaviour of any goods, or”.

(2) In the said section three (which also defines “false trade description” to mean a trade description which is false in a material respect as regards the goods to which it is applied, and to include every alteration of a trade description making the description false in a material respect) that definition shall be amended by inserting after the word “false” in the second and third places where it occurs the words “or misleading”.

(3) Without prejudice to the generality of those definitions as so amended, a trade description (to whichever of the matters mentioned in the definition of “trade description” as so amended it relates) shall be deemed for the purposes of the said Act to be a false trade description if it is calculated to be misunderstood as, or mistaken for, an indication as to the same or some other such matter which would be false or misleading in a material respect as regards the goods to which the description is applied, and anything calculated to be misunderstood as, or mistaken for, an indication of any of those matters shall be deemed for those purposes to be a trade description.

(4) Notwithstanding anything in the said definition of “false trade description”, no trade mark within the meaning of the Trade Marks Act, 1938, or part of such a trade mark, shall by

virtue of the foregoing subsections be treated as a false trade description in relation to any goods to which the trade mark is applied, if the following conditions are satisfied, that is to say:—

- (a) on the day this Act is passed the trade mark either is registered under the Trade Marks Act, 1938, or is in use to indicate a connection in the course of trade between those goods and the proprietor of the trade mark; and
- (b) the trade mark as applied is used to indicate a connection in the course of trade between the goods and the person who is the proprietor of the trade mark or between the goods and a person who is registered under section twenty-eight of the Trade Marks Act, 1938, as a registered user of the trade mark; and
- (c) the person who is the proprietor of the trade mark is the same person as, or a successor in title of, the proprietor on the day this Act is passed.

(5) This section shall not extend the classes of goods which under section sixteen of the Merchandise Marks Act, 1887, are prohibited to be imported into the United Kingdom and Isle of Man as having a false trade description applied to them.

(6) This section shall come into force on the expiration of the six months beginning with the day this Act is passed.

Exception for
certain
statutory
descriptions of
agricultural
produce, etc.

2.—(1) Section two of the Merchandise Marks Act, 1887, so far as it relates to false trade descriptions, shall not apply—

- (a) to any description applied in pursuance of the Seeds Act, 1920, to seeds to which that Act applies or to seed potatoes; or
- (b) to any description applied in pursuance of the Fertilisers and Feeding Stuffs Act, 1926, to any article included in the first column of the First Schedule to that Act.

(2) A person authorised to mark articles with a grade designation mark specified for the purposes of this subsection by order of the Minister of Agriculture and Fisheries or Secretary of State shall not be guilty of any offence under subsection (1) or (2) of section two of the Merchandise Marks Act, 1887, because the mark as applied to any articles is a false trade description, if the articles are or were marked with the mark by him in accordance with the authority given him.

(3) In subsection (2) of this section the expression “grade designation mark” means a grade designation mark within the meaning of the Agricultural Produce (Grading and Marking) Acts, 1928 and 1931, and a grade designation mark within the meaning of the Marketing of Fruit Act (Northern Ireland), 1931, or any like mark of quality for the application and protection of

which provision is made by or under any enactment of the Parliament of Northern Ireland for the time being in force, and the expression "authorised" means authorised by or under the enactments relating to the application and protection of the mark.

(4) The power to make orders for the purposes of subsection (2) of this section shall include power to vary or revoke any order so made, and shall be exercisable by statutory instrument, which shall be subject to annulment by resolution of either House of Parliament.

3.—(1) The following enactments (which are designed to secure Imported goods bearing U.K. certification trade mark. that United Kingdom trade marks on certain foreign goods are accompanied by an indication of the origin of the goods, and otherwise to prevent fraud in the use of such marks on imported goods), that is to say—

- (a) paragraph (1) of section sixteen of the Merchandise Marks Act, 1887;
- (b) subsection (1) of section one of the Merchandise Marks Act, 1911; and
- (c) (subject to the following subsection) subsection (1) of section one of the Merchandise Marks Act, 1926;

shall apply to a mark being, or purporting to be, a certification trade mark registered or deemed to be registered under section thirty-seven of the Trade Marks Act, 1938, in the name, as proprietor thereof, of a person in the United Kingdom, as they apply to the trade mark of a manufacturer, dealer or trader in the United Kingdom.

(2) Section one of the said Act of 1926 shall not have effect in respect of the application of a certification trade mark to articles used or to be used for any of the following purposes, that is to say, as coverings, labels, reels or otherwise as articles in or with which goods manufactured or produced in the United Kingdom are or are to be sold or exposed for sale, if the mark relates or is to relate to those goods, and was so applied by or with the consent of the proprietor of the mark or by another in accordance with his authorisation under the regulations relating to the mark.

4. Section two of the Merchandise Marks Act, 1887, shall be amended by the deletion of subsection (2) thereof and the insertion of the following subsection:— Clarification of s. 2 (2) of Merchandise Marks Act, 1887.

"(2) Every person who sells, or exposes for, or has in his possession for, sale, or any purpose of trade or manufacture, any goods or things to which any forged trade mark or false trade description is applied, or to which any trade mark or mark so nearly resembling a trade mark as to be calculated

to deceive is falsely applied, as the case may be, shall, unless he proves either—

(a) that, having taken all reasonable precautions against committing an offence against this Act, he had, at the time of the commission of the alleged offence, no reason to suspect the genuineness of the trade mark, mark or trade description, and that, on demand made by or on behalf of the prosecutor, he gave all the information in his power with respect to the persons from whom he obtained such goods or things; or

(b) that otherwise he had acted innocently;

be guilty of an offence against this Act ”.

Increase of
penalties.

5. The maximum fine to which a person is liable under paragraph (ii) of subsection (3) of section two of the Merchandise Marks Act, 1887 (which relates to summary convictions for offences under that Act), shall be one hundred pounds or, in the case of a second or subsequent conviction, two hundred and fifty pounds (instead of twenty pounds or fifty pounds).

Short title,
citation,
repeal and
extent.

6.—(1) This Act may be cited as the Merchandise Marks Act, 1953, and this Act and the Merchandise Marks Acts, 1887 to 1938, may be cited together as the Merchandise Marks Acts, 1887 to 1953.

(2) Section ten of the Fertilisers and Feeding Stuffs Act, 1926, is hereby repealed except as respects descriptions applied before the day this Act is passed.

(3) It is hereby declared that this Act extends to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Merchandise Marks Act, 1887	50 & 51 Vict. c. 28.
Merchandise Marks Act, 1911	1 & 2 Geo. 5. c. 31.
Seeds Act, 1920	10 & 11 Geo. 5. c. 54.
Fertilisers and Feeding Stuffs Act, 1926	16 & 17 Geo. 5. c. 45.
Merchandise Marks Act, 1926	16 & 17 Geo. 5. c. 53.
Trade Marks Act, 1938	1 & 2 Geo. 6. c. 22.

